DE-315

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NO.:
After recording, return to:
NAME:
FIRM NAME:
STREET ADDRESS:
CITY, STATE, ZIP CODE:
TELEPHONE NO.: FAX NO.:
EMAIL ADDRESS:
ATTORNEY FOR *(name):*

SUPERIOR COURT OF CALIFORNIA, COUNTY OF
STREET ADDRESS:
MAILING ADDRESS:
CITY AND ZIP CODE:
BRANCH NAME:

FOR RECORDER'S USE ONLY

ESTATE OF *(name):*

DECEDENT

CASE NUMBER:

ORDER DETERMINING SUCCESSION TO PRIMARY RESIDENCE

FOR COURT USE ONLY

1. Date of hearing: Time:
   Dept./Room:
   Judicial Officer *(name):*

THE COURT FINDS

2. Notice has been given as required by law.
3. Decedent died on *(date):*
   a. ☐ a resident of this county.
   b. ☐ a nonresident of California who owned property in this county.
   c. ☐ intestate *(without a will)* ☐ testate *(with a will).*
4. At least 40 days have passed since the decedent's death.
5. a. ☐ No proceeding for the administration of the decedent's estate is now being or has been conducted in California.
   b. ☐ Decedent's personal representative has consented in writing to use the procedure in Probate Code section 13150 et seq.
6. The gross value of the real property described in item 9a does not exceed
   ☐ **$166,250** *(death before April 1, 2022).*
   ☐ **$184,500** *(death on or after April 1, 2022, and before April 1, 2025).*
   ☐ **$750,000** *(death on or after April 1, 2025).*
7. Each petitioner is a successor of the decedent (as defined in Probate Code section 13006) to the decedent's interest in the real property described in item 9a because each petitioner is *(check one):*
   a. ☐ ***(will)*** a beneficiary who succeeded to the property under decedent's will.
   b. ☐ ***(no will)*** a person who succeeded to the property under Probate Code sections 6401 and 6402.
8. The real property described in item 9a was the decedent's primary residence in the state of California.

THE COURT FURTHER FINDS AND ORDERS

9. a. The real property ☐ described in Attachment 9a ☐ described below passes to each petitioner as described in b.
   *(Give **legal description** of property, including Assessor's Parcel Number):*

   b. Each petitioner's **name** and specific interest in the property ☐ is stated in Attachment 9b ☐ is as follows *(specify):*

10. ☐ Other orders are stated in Attachment 10.
11. Number of pages attached: _____

Date:

JUDICIAL OFFICER

☐ SIGNATURE FOLLOWS LAST ATTACHMENT

Form Adopted for Mandatory Use
Judicial Council of California
DE-315 [Rev. April 28, 2025]

Probate Code, § 13154
courts.ca.gov

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